

INDEPENDENT, ALTERNATIVE, AND COMMUNITY MEDIA AN OPEN READER

Edited and with an introduction by
David W. Park & Meghan Grosse

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Independent, Alternative, and Community Media: An Open Reader

Edited by David W. Park & Meghan Grosse

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Media Activism from Above and Below: Lessons From the 1940s American Reform Movement

Victor Pickard

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Abstract

The 1940s was a contentious decade for US media policy. Activists, policymakers, and communication industries grappled over media's normative foundations and regulatory guidelines. At this time, a reform agenda was taking shape at both the grassroots social movement level and inside elite policy circles. This paper examines the tensions within this nascent media reform movement, many of which are still negotiated among media activists today. by recovering contingency and conflict, this research sheds light on larger paradigmatic shifts. It suggests that despite significant reform activism in the 1940s, a commercial, self-regulated media system emerged largely inoculated against further structural challenges. The failures of this reform movement hold important lessons for contemporary activists.

Keywords

1940s, media activism, media advocacy, media policy, media reform

American media history is often sanitized of its contentious past. To suggest that the “winners” have been the sole authors of this history would be an overstatement, but

most historical accounts downplay popular resistance to what would become the dominant commercial media model. To the extent that it is pondered at all, our current media system is often assumed to be part of the natural order of everyday life. However, many features of the American media system actually trace back to resolutions borne from repeated confrontations over the design and democratic purpose of communication institutions. During these policy fights over media's normative role in a democratic society, grassroots activists, DC-based regulators, and commercial media industries grappled over competing visions. The following study aims to reorient our understanding of American media policy history by reinserting this conflict at the heart of the media system's design.

Drawing from a historical analysis that I expand on elsewhere,¹ I emphasize that media reform efforts—advanced by both public interest-oriented policymakers from above and grassroots advocates and activists from below—are a mainstay of American media history. In doing so, I draw attention to a largely forgotten history of media reform activism, particularly during the 1940s. My main purpose for foregrounding this “usable history” is to bring a number of lessons and implications drawn from these earlier contestations into focus and show their relevance for the challenges facing media reformers today.

American Media's normative Foundations Rooted in Conflict

Most Americans are taught in school that an independent press is necessary for democratic self-governance, but rarely do we stop to reflect on what this really means. How did we as a society determine media's primary role as a democratic force? How did we decide upon media institutions' obligations to the public? How was the relationship between the state, the polity, and media institutions constructed, and how has this arrangement changed over time? Such inquiries require historical analyses that trace policy discourses and trajectories back to moments of conflict when normative foundations were fought over and assumptions about media's democratic role ossified. This approach highlights contingency; it reveals that outcomes were neither foreordained nor natural. At key junctures in this media system's development, amid multiple sites of struggle, certain claims won out over others. Thus, the contours of our media system have resulted more from contestation than any consensual notion of what media should look like.² In many ways, a history of media is, in fact, a history of media reform. More specifically, it is a history of often-failed attempts to decommercialize the American media system.

“Media reform,” as I use it, refers to activist attempts to make structural changes to a media system, usually through policy interventions. American history is punctuated with moments of struggle and reform in which politicized groups saw media as a crucial terrain of contestation.³ An overview of this history benefits from the inclusion of case studies in which conflicting interests and their respective discourses are cast into sharp relief. These moments tend to occur

¹ Victor Pickard, *America's Battle for Media Democracy: The Triumph of Corporate Libertarianism and the Future of Media Reform* (Cambridge: Cambridge University Press, 2014).

² See, for example, Robert McChesney, “Conflict, not Consensus: The debate Over broadcast Communication Policy, 1930-1935,” in *Ruthless Criticism: New Perspectives in U.S. Communication History*, ed. William Solomon and Robert McChesney (Minneapolis: University of Minnesota Press, 1993), 222–257.

³ For an examination of media reform as a social movement, see Robert A. Hackett and William K. Carroll, *Remaking Media: The Struggle to Democratize Public Communication* (London & New York: Routledge, 2006).

during what previous scholars have termed “critical junctures”⁴ or “constitutive moments”⁵: periods of rapid change marked by crisis and opportunity. This essay draws from archival materials to reflect on past struggles to change the American media system, focusing on the especially contentious debates of the 1940s. As activists, policymakers, and media industries grappled over the normative foundations that governed major communication and regulatory institutions, a reform agenda was taking shape at both the grassroots social movement level and inside elite policy circles. In an effort to inform future media reform efforts, this essay examines the tensions within this nascent media reform movement, many of which are still negotiated by media reform groups today. It pays particular attention to the retreat from a structural critique of the commercial media system in the immediate postwar years.

Historicizing media reform efforts and policy debates allows us to address the question of how we got here, and it restores contingency and deferred alternatives—ideas which merit recovery not only because they correct the historical record by reclaiming resistance, but also for their potential to inspire future reform efforts. This kind of critical historical analysis problematizes and politicizes current media policies. To varying degrees, resistance against the media system is always present. during critical junctures—or whatever “pivotal moment” metaphor we choose—this resistance peaks, opening up windows of fleeting opportunity. At the same time, it is during these moments of crisis that a media system’s normative foundations become concretized. Recovering forgotten alternatives like activist and noncommercial models sheds light on larger paradigmatic shifts. For example, it shows that the ideological consolidation that girded a commercial, self-regulated media system emerged from the 1940s largely intact and further inoculated against structural challenges despite activist efforts. The rise and fall of this postwar media reform movement holds several key lessons for contemporary media activists. before explicating these implications, however, I will first discuss a historical and theoretical framework that brings these struggles into focus. next I discuss some specific 1940s reform initiatives and their parallels in our current political moment. Finally, I draw some general lessons from the history of this failed media reform movement.

A Gramscian Approach to Power and History

Like all social phenomena, media policy does not spring fully formed from Zeus’s head; rather, it emerges from a multiplicity of sociopolitical influences. In making sense of these inherently messy processes, a historical analysis of media policy invites a particular theoretical model: one that underscores contingencies without obscuring the evolving contours of power relationships. At its best, this kind of theoretical approach encourages and guides action by underscoring the stakes and by bringing political arrangements and power structures into focus. In general, historicizing is valuable in that it allows us to see contemporary relationships, practices, and institutions as historical constructs contingent upon contemporaneous factors instead of simply natural phenomena. by applying this approach to current media debates, we can reimagine the present and reclaim alternative trajectories.

A number of theoretical approaches fall under the rubric of historical research. Although high theory is unnecessary for understanding the history of American media reform, a par-

⁴ Robert McChesney, *Communication Revolution* (New York: New Press, 2007).

⁵ Paul Starr, *The Creation of the Media* (New York: Basic Books, 2004).

ticular framework may prove useful if we are to understand recurring patterns of struggle. Combining intellectual, social, and political histories, my theoretical approach to understanding how power operates and history unfolds vis-à-vis media processes and institutions can best be described as Gramscian. Fleshing out patterns like contingencies, contradictions, conjunctures, and ruptures, this analysis assumes that all historical processes transpire over time in complex dialectical interplays, especially between hegemonic forces and the disempowered. Rendered correctly, such historical approaches avoid over-determination. The critical media studies scholar deepa Kumar reminds us that Marxist methods enable an understanding of “the world in all its complexity” and thereby “opens up the possibility for change.”⁶ Despite an emphasis on showing how power ensures its own preponderance, this approach does not assume that policy outcomes always reflect the most powerful interests’ intentions and, as such, are predetermined. Rather, a Gramscian critique allows for various kinds of agency in the form of engagement with and resistance against dominant power structures.

Much Gramscian theory centers on the notion of “hegemony,” a contentious political process by which elites control that which passes as “common sense.”⁷ These power relationships are inherently unstable, and constantly open up new terrains for political struggle between dominant interests and those they attempt to subjugate. They must be recreated daily, constantly opening up new areas for resistance. Stuart Hall notes that hegemony “should never be mistaken for a finished project.”⁸ A Gramscian historical framework restores the promise of change, allows for unexpected outcomes, and assumes that human events reflect not societal consensus but ongoing conflict. This conflict is greatest during realignments of what Gramsci termed “historic blocs” of the ruling elite. Such reconfigurations produce new political opportunities, which in turn allow for new policy formations.

Gramsci referred to these periods in which historic blocs are challenged as “conjunctural moments.” A conjuncture marks the immediate terrain of conflict. Explicating this useful concept, Gramsci wrote:

A crisis occurs, sometimes lasting for decades. This exceptional duration means that incurable structural contradictions have revealed themselves . . . and that, despite this, the political forces which are struggling to conserve and defend the existing structure itself are making every effort to cure them, within certain limits, and to overcome them. These incessant and persistent efforts . . . form the terrain of the “conjunctural,” and it is upon this terrain that the forces of opposition organize.⁹

Those points in American history when industry control of major media institutions was challenged serve as conjunctural moments. during the depression and the new deal, for example, a counter-hegemonic regime was struggling to take hold as historic blocs were in flux. new alliances were forming, serving as an impetus for what Gramsci termed a “crisis of the ruling class’s hegemony” and a “crisis of authority.”¹⁰ “If the ruling class has lost its con-

⁶ Deepa Kumar, “Media, Culture and Society: The Relevance of Marx’s dialectical Method in Marxism and Communication Studies,” in *The Point Is to Change It*, ed. Lee Artz, Steve Macek, and Dana Cloud (New York: Peter Lang, 2006), 83.

⁷ Antonio Gramsci, *Selections from the Prison Notebooks* (New York: International Publishers, 1972), 323, 334, 419, 425.

⁸ Stuart Hall, *The Hard Road to Renewal* (London: Verso, 1988), 7.

⁹ Gramsci, “Selections,” 178.

¹⁰ *Ibid.*, 210, 275.

sensus,” Gramsci argued, “this means precisely that the great masses have become detached from their traditional ideologies.” According to this Gramscian analysis, “the crisis consists precisely in the fact that the old is dying and the new cannot be born.”¹¹

The ultimate failure of these counter-hegemonic attempts makes them no less significant. As cultural historian Michael Denning argues in his examination of the “Popular Front,” a coalition of left wing radicals, new deal liberals, and political progressives that drove reform during the 1930s and 40s, these efforts often have lasting material effects even in failure. He notes how a prolonged “war of position” unfolded during the Great Depression and World War II, between conservative forces and a Popular Front social movement that attempted “to create a new historical bloc, a new balance of forces.” Denning argues that the “post-war settlement” that eventually emerged—exemplified by the corporatist arrangement of big labor, big capital, and big government—resulted from “the defeat of the Popular Front and the post-war purge of the left from the Congress of Industrial Organizations (CIO) and the cultural apparatus.” “If the metaphor of the front suggests a place where contending forces meet,” Denning observes, “the complementary metaphor of the conjuncture suggests the time of the battle.” Based on this view, Denning sees the history of the Popular Front as “a series of offensives and retreats on the ‘terrain of the conjuncture.’”¹²

This focus on evolving historical patterns of power struggles and shifting institutional life cycles around conjunctural moments brings Gramscian analysis into conversation with concepts associated with historical institutionalism. At first glance, Gramscian theory and historical institutionalism may seem like an odd pairing. After all, the latter seeks to move beyond grand theorizing and basic material explanations for institutional change that do not adequately explain all variations of institutional behavior.¹³ However, historical institutionalism assumes that larger macro-level historical and political relationships—the focus of much Marxist analysis—are mediated through interconnected institutional discourses, habits, and imperatives to impact micro-level processes. Both Gramscian theory and historical institutionalism focus on how struggles over foundational assumptions during times of crisis can result in intellectual paradigm shifts. Furthermore, in seeking to shed light on sharp breaks from the past, combining these theoretical models can help account for how moments of equilibrium are ruptured, ushering in a new set of policies that may result in new institutional arrangements. Both theoretical approaches also assume that institutions and their relationships reflect historical experiences of conflict and compromise among organized constituencies. Among other types of inquiry, historical institutionalism tries to make sense of how some trajectories are chosen over others.¹⁴ Thus, discerning “paths not taken” is as significant as identifying the chosen trajectories and resulting path dependencies.¹⁵

The most important overlap in the two frameworks is found in Gramsci’s notions of crisis and conjuncture and historical institutionalism’s focus on “critical junctures.” The concept of

¹¹ Ibid, 275–276.

¹² Michael Denning, *The Cultural Front: The Labouring of American Culture in the Twentieth Century* (London: Verso, 1996), 22.

¹³ Theda Skocpol, Peter B. Evans, and Dietrich Rueschmeyer, *Bringing the State Back In* (Cambridge: Cambridge University Press, 1985).

¹⁴ Theda Skocpol, “Why I am a Historical-Institutionalist,” *Polity* 28, Fall (1985): 103–106.

¹⁵ Paul Pierson and Theda Skocpol, “Historical Institutionalism in Contemporary Political Science,” in *Historical Institutionalism*, ed. Ira Katznelson and Helen V. Milner (New York: W.W. Norton, 2002), 693–721.

critical junctures brings into focus how institutional regimes and relationships see long periods of relative stability and path dependency punctuated by sudden systemic jolts, in which new opportunities for change arise. Much of the literature within policy studies shows how decisions made during such periods profoundly impact systemic development.¹⁶ As Kathleen Thelen notes, “Politics involves some elements of chance (agency, choice), but once a path is taken, then it can become ‘locked in’ as all the relevant actors adjust their strategies to accommodate the prevailing pattern.”¹⁷ Robert McChesney has applied this theory specifically to understanding media reform, and argues that the US media system is undergoing a critical juncture in the early twenty-first century.¹⁸ Critical junctures tend to invite more public engagement with and scrutiny of media systems than less contentious periods and typically emerge during times of technical, political, and social change. During these moments, radical ideas that were previously deemed beyond the bounds of permissible discourse are suddenly granted more legitimacy. Thus, this theoretical and historical framework brings into focus recurring moments of contestation when a media system’s normative foundations are challenged and, possibly, redefined.

Waves of Media Reform

Periods of media reform are often marked by an explosion of activist media. Indeed, activist media have been a crucial resource for American social movements and marginalized groups who have often resorted to contesting representations in the mainstream press or creating their own media to advance political causes. Revolutionary pamphleteers helped mobilize the struggle for independence against the British. A vibrant abolitionist press galvanized reformers in the decades preceding the Civil War. A popular working class press was integral to the burgeoning labor movement in the first half of the twentieth century. In the early 1900s, the advertising-supported socialist newspaper *The Appeal to Reason* reached nearly a million subscribers and helped advance socialist candidate Eugene Debs’s presidential ambitions. During the nineteenth and twentieth centuries, an ethnic press provided support for various marginalized cultural groups.¹⁹ In the 1960s, an underground press helped sustain the civil rights and antiwar movements. Today, digital social media are central to media reform efforts.

In the twentieth century, media reform struggles have increasingly centered on questions of policy to effect change in the structures of media themselves. The 1930s and 1940s witnessed targeted policy reform efforts, particularly toward broadcast monopolies and the newspaper industry, when both elites and grassroots activists considered a relatively wide range of policy options. In the 1930s, a spirited media reform coalition attempted to establish a more public-oriented broadcast system, while the Newspaper Guild challenged the commercial

¹⁶ See, for example, Ruth Berins Collier and David Collier, *Shaping the Political Arena, the Labor Movement, and Regime Dynamics in Latin America* (Princeton: Princeton University Press, 1991); John W. Kingdon, *Agendas, Alternatives, and Public Policies* (New York: Longman, 2002); Deborah Stone, *Policy Paradox: The Art of Political Decision Making* (New York: W.W. Norton, 2001).

¹⁷ Kathleen Thelen, “Historical Institutionalism in Comparative Politics,” *Annual Review of Political Science* 2 (1999): 385.

¹⁸ McChesney, *Communication Revolution*, 9–12.

¹⁹ Juan Gonzalez and Joseph Torres, *News for All the People: The Epic Story of Race and the American Media* (London: Verso, 2011).

publishers' ownership and control of print media.²⁰ These efforts were ultimately crushed, but they established footholds for future reformers to carry on various struggles, particularly during the 1940s, as I will show. Antiwar, civil rights, and other social movements advanced media reform projects in the 1960s. During this time, public broadcasting was established, the Fairness doctrine enjoyed its golden age, and reform groups coordinated around a number of key policy issues.²¹ Within the new World Information and Communication Order (NWICO) debates in the 1970s, a global media reform movement, perhaps the first of its kind, took place around communication rights. Many of these reform initiatives would later reemerge during the World Summit on the Information Society (WSIS) debates in the early 2000s.²²

More recently, issues like media ownership and internet policy—as well as ongoing struggles over representation and alternative media—have galvanized vibrant media reform movements. Media democracy, media justice, and media reform movements coalesced in the late 1990s to take on different aspects of the corporate media system. These movements often took advantage of new digital media, especially the Internet. The rise of Internet-based activism would help drive a radical indymedia movement in the early 2000s that established Independent Media Centers in communities across the country and globe.²³ A similar emphasis on changing the media system helped establish the formidable media reform organization Free Press that would successfully engage and organize broad constituencies around what had previously been seen as obscure media policy issues. For decades, these issues had typically been negotiated behind closed doors and beyond public scrutiny, but media reformers proved that an engaged public could quickly change that calculus. In 2003, nearly three million people wrote letters to the Federal Communications Commission (FCC) contesting plans to loosen media ownership restrictions.²⁴ In 2006, over a million people petitioned the FCC in favor of a then-obscure policy called “net neutrality” designed to maintain a nondiscriminatory internet.²⁵ In 2012, 4.5 million people signed a petition to roll back two proposed internet piracy bills that would have given government and corporations tremendous power over web content.²⁶ In the summer of 2014, nearly four million people submitted comments in response to the FCC's proposed Open Internet rules. Similar activist energies have coalesced around a series of large national media reform conferences, which attract thousands of attendees.

²⁰ Ben Scott, “Labor's new deal for Journalism: The newspaper Guild in the 1930s” (PhD diss., University of Illinois, Urbana, 2009).

²¹ Mark Lloyd, *Prologue to a Farce: Democracy and Communication in America* (Urbana: University of Illinois Press, 2007); Milton Mueller, Brenden Kuebris and Christina Page, “Reinventing Media Activism: Public Interest Reform in the Making of U.S. Communication-Information Policy, 1960-2002,” *Information Society* 20, no. 3 (2004): 169–187.

²² Victor Pickard, “Neoliberal Visions and Revisions in Global Communications Policy from NWICO to WSIS,” *Journal of Communication Inquiry* 31, no. 2: (2007): 118–139.

²³ Victor Pickard, “Assessing the Radical democracy of Indymedia: Discursive, Technical and Institutional Constructions,” *Critical Studies in Media Communication* 23, no. 1 (2006): 19–38.

²⁴ Eric Klinenberg, *Fighting for Air: The Battle to Control America's Media* (New York: Metropolitan books, 2007), 238–244.

²⁵ Stephanie Kirchgaessner, Patti Waldmeir, and Richard Waters, “Google Action Tests Power of Cash vs Votes in Washington,” *The Financial Times*, July 18, 2006.

²⁶ “SOPA Petition Gets Millions of Signatures as Internet Piracy Legislation Protests Continue,” *Washington Post*, January 19, 2012, accessed May 14, 2015, http://www.washingtonpost.com/business/economy/sopa-petition-gets-millions-of-signatures-as-internet-piracy-legislation-protestscontinue/2012/01/19/gIQAHaAybQ_story.html.

It is tempting to assume that these increasingly common reformist manifestations are unique to this period in American history. However, as this brief historical sketch suggests, these waves of activism are, in fact, continuities of ongoing media reform traditions. One of these historic moments of media reform holds particular contemporary relevance, both in terms of forgotten antecedents and important parallels. For the remainder of this paper I focus on the post-World War II media reform movement.

The Rise and Fall of the Postwar Media Reform Movement

Although I discuss the postwar media reform movement in more detail elsewhere,²⁷ a brief synopsis is useful here. The 1940s saw widespread public discontent with commercial media institutions, stemming from a perceived lack of local accountability, the rise of media monopolies, and increasingly obtrusive advertising. Radio was subject to especially vehement public criticism, and the newspaper industry underwent a crisis that prompted policymakers to call for structural reform.²⁸ The disintegration of the liberal new deal consensus, reactions from threatened business elites, and a rightward shift in the political landscape led to socio-political turmoil and uncertainty. Technological changes were also dramatic; broadcasting was still a relatively new medium, especially given the rise of FM radio, and television lay just over the horizon. These factors combined to produce a fleeting opportunity for a fairly radical overhaul of an entrenched media system—reforms that would be unthinkable during less contentious times.

At this time, political elites in Congress, the Supreme Court, the White House, and the FCC aligned with labor, educators, and civil rights groups to negotiate a number of crucial policy debates about the role of media infrastructure in a democratic society. The resolutions of these debates helped define the relationships between media institutions, various publics, and the state: the FCC forced nbc to divest itself of its blue network, which became Abc; the Supreme Court's 1945 antitrust ruling against the Associated Press called for government to encourage "diverse and antagonistic voices" in media; the 1946 FCC blue book, which outlined broadcasters' public service responsibilities, advocated for more local news, public affairs, and experimental noncommercial programming; the 1947 Hutchins Commission on Freedom of the Press established journalistic ethics; and the 1949 Fairness doctrine mandated public interest parameters for broadcasters.

The logic driving these reform efforts is best described as "social democratic" in the sense that it assumed a progressive role for the state in protecting media's public service responsibilities from excessive commercial imperatives.²⁹ The massive governmental programs of the new deal changed fundamental expectations about government and the role of civic participation. beginning in the late 1930s, the US economy was under pressure from the federal government to ramp up war production, restoring financial health after a disastrous economic depression. In the early to mid-1940s, the United States was directly involved in a

²⁷ See Victor Pickard, "The Air belongs to the People: The Rise and Fall of a Postwar Radio Reform Movement," *Critical Studies in Media Communication* 30, no. 4 (2013): 307–326.

²⁸ For newspapers, see David Davies, *The Postwar Decline of American Newspapers, 1945–1965* (Westport: Praeger, 2006); for radio, see Elizabeth Fones-Wolf, *Waves of Opposition: Labor, Business, and the Struggle for Democratic Radio* (Urbana: University of Illinois Press, 2006).

²⁹ Pickard, *America's Battle for Media Democracy*, 4–5.

world war, which ushered in a period of government and corporate propaganda and limited speech in some ways, while reorganizing priorities for telecommunications and media policy. At the same time, the new deal agenda, which arrived later and stayed longer at the FCC than other areas of government, focused on breaking up monopolies and imposing public interest obligations on companies that commanded much of the economy.

By the mid-1940s, progressive policymakers' concerns about commercial capture squandering radio's democratic potential were further bolstered by increasing dissent from below, which manifested as a media reform coalition composed of dissident intellectuals, civil libertarians, African American groups, religious organizations, educators, labor unions, and other progressive activists.³⁰ These groups pressured broadcasters and the FCC via petitions, call-ins, and letter-writing campaigns, urging them to democratize the public airwaves and to improve programming.³¹ This public pressure challenged the ascendant libertarian notion of media industry self-regulation, and prompted policy measures like the FCC blue book. The blue book documented the lack of diversity in typical radio programming, and it established criteria that defined and protected the "public interest," but it also encouraged more engagement from local communities to help keep broadcasters accountable.

The neighborhood or community listener council was a signature model of 1940s radio activism.³² Although there was no single leadership formula or blueprint for the creation of these institutions, the veteran reformer and media scholar Charles Siepmann stated that the "idea of such councils is the federation of interest in radio of all social groups in a given community—independent of influence or financial support by radio stations."³³ Throughout the mid- to late 1940s, reformers placed much hope on listener councils' potential.³⁴ Usually created by local communities—sometimes organized by parents, educators, and various civic organizations—listener councils fostered active engagement with radio programming. By the mid-1940s, listener councils were established in Cleveland, Columbus, and New York City, and in more rural areas like central Wisconsin and northern California. As these councils emerged across the country, reformers advocated for their broader deployment to counter commercial broadcasters' control of broadcasting, especially their dominance over programming selections and their reliance on excessive advertising. Some reformers hoped that the councils could extend to the state level,³⁵ and coordinate nationally, thereby harmonizing

³⁰ Ibid., 9–37.

³¹ Other groups involved in 1940s media reform campaigns include the ACLU, Jewish organizations, and women's groups. For an interesting case study of the latter that was often pro-industry and anti-media regulation, see Jennifer Proffitt, "War, Peace, and Free Radio: The Women's national Radio Committee's Efforts to Promote democracy, 1939–1946," *Journal of Radio & Audio Media* 17, no.1 (2010): 2–17.

³² A related model was the "radio listening group." Thousands of these groups sprang up across the United States during the 1930s and 1940s. For an in-depth review of listenening groups' deployment in the United States and in other countries, see David Goodman, "FREC and Radio Listening Groups," ICA Conference, San Juan, May 2015. See also David Goodman, *Radio's Civic Ambition: American Broadcasting and Democracy in the 1930s* (New York: Oxford University Press, 2011)

³³ Siepmann, 1950, 78.

³⁴ See, for example, Dorothy McFadden, "Voice for the Listener," *New York Times*, February 27, 1944, X7; Jack Gould, "Listeners Council: An Active Organization would benefit Radio," *New York Times*, January 4, 1948, X9; Robert Lewis Shayon, "TV Programming Changes: don't Look Too Much to FCC—for it looks to . . ." *The Christian Science Monitor*, September 14, 1950, 6; "Listener Council Movement backed as Means to Improve TV Programs," *The Christian Science Monitor*, September 19, 1950, 12.

³⁵ In some states, for example in New Jersey, successful state-level councils were established. See McFadden,

their standards and survey techniques with the FCC and potentially with an overarching public national council. They proposed that councils receive local government support or be volunteer-based to provide institutional backing for groups collecting research on the state of broadcasting. Armed with this data, listener councils could pressure radio stations to privilege localism with the threat of presenting their critical evaluations to the FCC during broadcasters' renewal procedures.³⁶

The potentials of listener councils generated a lot of support from 1940s media reformers, even if this model never became a major force within policy debates. Especially as the 1940s progressed and the FCC seemed to falter in its activist agenda, many progressive policy elites hoped for an aroused public to step into the breach. For example, Charles Siepmann saw listener councils as the "community's best safeguard against the exploitation of the people's wavelengths and the surest guarantee [that radio stations consider] . . . its needs."³⁷ by devising blueprints for high-quality local programming, Siepmann opined, the councils serve as "watchdogs for the listener, ready and able to protest the abuse of airtime and to promote its better use."³⁸ Siepmann and other reformers hoped that an engaged public could succeed where the FCC had failed to police a commercial media system into being more public service oriented.

Robert Shayon, another prominent supporter, referred to a "Listener Council movement" and saw them as an instrument for potential democratization of broadcasting.³⁹ He endorsed Siepmann's "eight functions of a listener council," including the following: collect and publicize essential facts on the present state of broadcasting; facilitate and encourage discriminative listening to worthwhile programs; bring pressure on stations to eliminate abuses; voice the needs of the community by preparing blueprints of worthwhile programs to be executed by a station; provide listeners with opportunity to meet and discuss their interests in radio and television; alert listeners to important developments in radio and television by means of bulletins and circulars; carry its members' views to the FCC regarding matters of policy raised in public hearings before the FCC or to the renewal of a given station's license; and influence not only radio and television but also the press by correspondence and prepared articles on radio and television as a social force.⁴⁰ The listener council seemed like the ideal vehicle to advance a more socially responsible broadcast system, but the model was also at risk of becoming appropriated by commercial stations who established their own industry-friendly listener councils. Ultimately the model never became the social force that reformers had envisioned.

Many activist groups participating in the 1940s media reform coalition also created their own alternative media, contested negative imagery in mainstream media, and exploited openings within commercial media to disseminate their political messages. Labor unions succeeded in buying a number of stations and instructed their members on producing their own

1944.

³⁶ See Llewellyn White, *The American Radio* (Chicago: University of Chicago Press, 1947), 122–125, 222–234.

³⁷ Charles Siepmann, *Radio's Second Chance* (Boston: Little, brown & Co., 1946), 51–52.

³⁸ *Ibid.*, 50–52.

³⁹ Shayon, Robert. *Television and Our Children* (New York: Longmans, Green and Co., 1951), 71–82. Similarly, McFadden, 1944 referred to a "growing movement" toward establishing listener councils.

⁴⁰ *Ibid.*, 74, listed in Siepmann, 1950, 78.

shows or insert labor-friendly scripts into commercial radio programming. The left-leaning CIO galvanized reformers with its *Radio Handbook*, a pamphlet that contained instructions for getting on the air and promoting “freedom to listen” and “freedom of the air.” It insisted that workers had not exercised “their *right* to use radio broadcasting.” “Labor has a voice,” the pamphlet stated, and “the people have a right to hear it.” Although broadcasters owned radio stations’ equipment, “the air over which the broadcasts are made does not belong to companies or corporations. *The air belongs to the people.*”⁴¹

The handbook instructed activists on how to gain radio time for a labor perspective via different techniques and formats, including the Straight Talk, the Round Table discussion, the Spot Announcement, and the dramatic Radio Play. It encouraged activists to generate good publicity and coordinate with consumer groups, cooperatives, women’s organizations, and religious organizations.⁴² beyond labor-related concerns, this media reform coalition shared major grievances, critiques, tactics, and strategies with which to engage in media policy debates in Washington, DC. Media reformers continuously pressured the FCC and commercial broadcasters to include diverse perspectives in radio programming. Their objectives often would converge around specific policy interventions, especially with progressive allies at the FCC. However, sometimes at critical moments (like when the FCC blue book was being released) there was a lack of communication and coordination between inside-the-beltway progressive policymakers and grassroots activists.

That the air belonged to the people, that the radio spectrum was a crucial public resource that should be protected from commercial interests, was a unifying rallying cry deployed by disparate activist groups.⁴³ but although the movement was successful in realizing a number of high-water marks in terms of progressive policy reforms, it ultimately failed, largely as the result of a corporate backlash that used Cold War politics to red-bait and silence reformers. Even attempts at relatively light and innocuous regulations (such as requiring media institutions to be more locally accountable) were pounced on by industry representatives and conservatives in both major parties as evidence of socialist sympathies. As the anticommunist hysteria reached a fever pitch in the late 1940s and early 1950s, progressive policy elites were essentially chased out of dC while more radical left-leaning activists were black-listed. Once this reform movement was demobilized, its initiatives were variously ignored, contested and co-opted by industry-friendly arrangements. I refer to this elsewhere as the “Postwar Settlement for American Media,” which cemented a self-regulating, commercial media system based on a “corporate libertarian” arrangement that continues to shape much of the media with which Americans interact today.⁴⁴ The media reformers would, however, succeed in advancing some progressive policies, including the policy that would develop into the Fairness doctrine, and their discursive gains would set the stage for future victories like establishing the public broadcasting system in the late 1960s.

⁴¹ Congress of Industrial Organizations (CIO), *Radio Handbook* (their emphases), 1944, 6.

⁴² *Ibid.*, 25.

⁴³ Pickard, “The Air belongs to the People.”

⁴⁴ Pickard, *America’s Battle for Media Democracy*, 5–6.

Lessons from the 1940s Media Reform Movement

There are a number of reasons that the rise and fall of the 1940s media reform movement remains relevant today. The recent collapse of commercial journalism makes the 1940s reformers' inability to effect structural change and the passed-over alternatives especially timely for reexamination. The persistence of similar crises suggests that many of our media problems are structural in nature and therefore require structural alternatives. Specifically, given the failure of the market to provide viable journalism, structural alternatives like non-profit and/or worker-owned newspapers, as well as more proactive regulatory interventions and resources devoted to public media, are worthy of reconsideration.⁴⁵ Another parallel is that the issues facing new media businesses in the 1940s have returned today: questions of gatekeeping (e.g., net neutrality); corporate capture of policy discourse and regulatory agencies (as well as, at least for a time, renewed efforts toward red-baiting),⁴⁶ and questions of spectrum allocation and management.⁴⁷ As the FCC and other regulatory agencies take up questions regarding the future of journalism and broadband provision, they would do well to remember that the lack of clear public interest standards can be traced back to earlier policy battles. And finally, just as a media reform movement was coalescing in the wake of World War II, a vibrant one is emerging now, albeit in fits and starts. History can provide guidance and help steer this new movement away from past mistakes.

Indeed, the purpose of this research is not to mourn a lost golden age or to lament what could have been. Rather, it aims to draw linkages between previous struggles and alternative futures, to learn lessons from past failures, and to see contemporary media reform movements as part of a long historical tradition. This kind of research also reminds us that our media system could have developed differently. If policy initiatives proposed by 1940s reformers had been given fair consideration we would likely have a different media system today, one based more on public service and less on commercialism. but beyond the general historical lesson that affords a long, properly contextualized view of social change, there are at least three key lessons for today's media reformers that can be gleaned from the decline of the 1940s movement:

1. Media reformers must continuously cultivate a strong inside/outside coordination between progressive policymakers and grassroots social movements.
2. Media reformers must maintain a strong structural critique and a "big picture" long-term vision.
3. Media reformers must interconnect with other social movement struggles and political issue networks.

⁴⁵ Victor Pickard, "The Great Evasion: Confronting Market Failure in American Media Policy," *Critical Studies in Media Communication* 31, no. 2 (2014): 153–159.

⁴⁶ Sascha Meinrath and Victor Pickard, "The new network neutrality: Criteria for Internet Freedom," *International Journal of Law and Communication* 12 (2008): 225–243.

⁴⁷ Victor Pickard and Sascha Meinrath, "Revitalizing the Public Airwaves: Opportunistic Unlicensed Reuse of Government Spectrum," *International Journal of Communication* 3, (2009): 1052–1084.

The first lesson is fairly intuitive for contemporary reformers: it is imperative to maintain a strong inside/outside strategy that keeps regulators connected to the grassroots (and not only to corporate lobbyists). Had progressive policymakers in the 1940s coordinated more with community activists, they may have been able to better withstand the ensuing onslaught. In more recent times, a similar vulnerability arguably occurred in the United States around net neutrality and other internet policy issues that focused too much on a Washington, DC strategy and failed to connect with less technocratic circles. Moreover, when liberal regulators come under pressure from industry—as they inevitably will—they will require popular support, which is difficult to maintain while compromises are being hatched behind closed doors, often in the public’s name but without public consent.

Second, we learn that media activists retreat on structural reform at their own peril. Postwar media reformers faced many difficulties beyond their control, but the movement’s decline was also partly due to their failure to maintain a structural critique of the commercial media system. In the early 1940s, reformers were trust-busting media conglomerates, but by the end of that decade they were trying to shame media corporations into being good. A structural approach recognizes that, short of public ownership, the most effective safeguard against an undemocratic commercial media system is a combination of aggressive government regulation at the federal level, and local control and oversight at the community level. In light of the current struggle to prevent an overly commercial and concentrated media system from becoming more so, it is instructive to recall a time when the FCC fought to bolster public interest safeguards instead of throwing them out. For a reinvigorated media reform movement to rise up, however, will require an intellectual project that maintains a clear structural critique, one that penetrates to the root of the problem with a commercial media system. This structural critique could potentially unite diverse constituencies and lead to not just reform, but transformation of the media system.

This brings us to the third and final lesson: We are reminded that media reform rises and falls with other political struggles and social movements. More coalition-building between diverse social movements and issue-based coalitions is paramount. For example, we must convince voting rights activists, the movement against the carceral state, anti-death penalty activists, the environmentalist movement, and the civil rights movement, among others, that media reform should be a central piece of their platforms. However, we also have to seek out ideologically diverse coalitions. This does not just mean linking arms within “strange bedfellow” alliances with conservatives around issues like excessive commercialism, media concentration, and indecency; it also means liberals should be finding common cause with more radical social movements. An article in *The Nation* from the founding editor of the socialist magazine *Jacobin* reminded liberal reformers that they needed radicals to advance their issues, as history shows that radicals often provide punch and coherence to liberal reform agendas.⁴⁸

In other words, American media policy advocates should be aiming for a new “popular front,” one that unites inside-the-beltway liberals with more radical grassroots activists and intellectuals. While DC-based policy liberals understand the political process and can remain focused on steering reform initiatives through legislative and regulatory channels, radicals

⁴⁸ Bhaskar Sunkara, “Letter to ‘The nation’ From a young Radical,” *The Nation*, May 21, 2013, accessed May 14, 2015, <http://www.thenation.com/article/174476/letter-nation-young-radical#axzz2fujTC5K>.

can maintain a “big picture” structural critique, remind liberals what is at stake, and focus on the long-term vision. Given that new models for media policy formations typically exist at the margins of political discourse, it is incumbent upon activists and intellectuals—including radical scholars—to bring those alternatives to light, challenge dominant ideologies and relationships, and assist reform movements working toward a more just and democratic media system. This level of engagement also requires a kind of intellectual labor for successful media reform, one that draws attention to the underlying discourses, paradigms, and narratives that do so much to shape the parameters of policy debates. Although a lack of vision too often hinders our imagination of what is possible in terms of media reform, this intellectual project stands to benefit greatly from a long historical view, drawing lessons from previous media reform campaigns to inform future struggles.

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